

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, MAY 7, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, MAY 6, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0091838 DISCOVER BANK v. KNEDEL, SCOTT

Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on January 12, 2026, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the principal amount of \$7,851.35, plus court costs in the amount of \$296.02, for a total judgment entered of \$8,147.37.

2. M-CV-0096906 ALESSANDRI, ERNEST v. CHASTAIN, CHRISTY

Defendant's Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff's verified complaint on the grounds the court lacks subject matter jurisdiction, the complaint is uncertain, and does not allege facts sufficient to state an unlawful detainer cause of action. A demurrer tests the legal

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sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

Code of Civil Procedure section 1166, subdivision (d) requires
in an action regarding residential property, the plaintiff shall attach to the complaint the following:

- (A) A copy of the notice or notices of termination served on the defendant upon which the complaint is based.
- (B) A copy of any written lease or rental agreement regarding the premises. Any addenda or attachments to the lease or written agreement that form the basis of the complaint shall also be attached. The documents required by this subparagraph are not required to be attached if the complaint alleges any of the following:
 - (i) The lease or rental agreement is oral.
 - (ii) A written lease or rental agreement regarding the premises is not in the possession of the landlord or any agent or employee of the landlord.
 - (iii) An action based solely on subdivision (2) of Section 1161.
- (2) If the plaintiff fails to attach the documents required by this subdivision, the court shall grant leave to amend the complaint for a five-day period in order to include the required attachments.

(Code Civ. Proc., § 1166, subd. (d)(1)–(2).)

Here, plaintiff's complaint alleges both nonpayment of rent pursuant to Code of Civil Procedure section 1161, subdivision (2) and failure to perform covenants pursuant to Code of Civil Procedure section 1161, subdivision (3). Additionally, plaintiff's complaint alleges the lease agreement was written and that it is attached to the complaint.

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege an unlawful detainer cause of action against defendant because the lease agreement is not attached and none of the exceptions apply.

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Accordingly, defendant's demurrer is sustained with leave to amend. Plaintiff shall file and serve an amended complaint on or before **May 12, 2026**.

Defendant Christy Chasatain's Motion to Quash Summons and Service of Summons

Defendant moves to quash the service of the three-day notices attached to the complaint and summons on the grounds that service was not properly effectuated.

Plaintiff bears the burden "to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The filing of a proof of service that complies with statutory standards creates a rebuttable presumption that service was proper. (Evid. Code § 647.)

Here, the proofs of service for the posting and mailing of the three-day notices attached to the complaint and the personal service of the summons and complaint, and were effectuated by a registered California process server, comply with the statutory standards. Defendant's denial that personal service was not effectuated, absent any other affirmative evidence, is not sufficient to overcome the presumption. (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.) Nor does defendant provide authority that walking onto her property past a gate invalidates service.

Accordingly, defendant's motion to quash is denied. Defendant shall file a responsive pleading five days after service upon them of the order after hearing. (Code Civ. Proc., § 1167.4, subd. (b).)

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Defendant County of Placer's Motion for Summary Judgment

Defendant County of Placer moves for summary judgment as to plaintiffs Frances Guinasso, individually, and as an heir for Jacob Newell (deceased) and Thomas Newell in plaintiffs' fourth amended complaint. Because defendant moved only for summary judgment, and did not move for summary adjudication in the alternative, defendant must defeat all of plaintiffs' causes of action to prevail. (Code Civ. Proc., § 437c, subds. (a)(1), (c).) *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1527.) Here, however, defendant does not present evidence, and therefore does not meet its initial burden, to defeat plaintiffs Natash Clark, individually and as Guardian Ad Litem for Brinley Newell and